



File No.: EXP202306622

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the complainant) states that MEDIUS COLLECTION, S.L. (hereinafter, the respondent) acquired a debt that he had pending payment with another entity, receiving constant calls requesting payment of the debt. He indicates that the debt is non-existent, as it was settled through a court ruling, and that he receives text messages requesting payment of it. Therefore, on January 26, 2023, the complainant requested the deletion of his personal data, without receiving a response.

On April 3, 2023, a complaint was filed with this Agency against the respondent for not having duly addressed the right to deletion.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within a month of the actions taken to comply with the requirements set forth in data protection regulations, with no record of any response having been submitted.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on July 3, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency decided to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days they could present any allegations they deemed appropriate. On July 28, 2023, a document was received in this Agency stating, in summary, that

"On June 1, 2022, a ruling was received from the Court of First Instance No. XX of ***LOCALITY.1 condemning the debtor to pay ***AMOUNT € to my client. The debtor proceeded to pay that amount in the Court, so that, depending on the workload in each Court, it may take some time to transfer that amount to our account. The amount was finally received on June 30, 2022. During that time, it is possible that the debtor received claims from the company, as it is internal policy not to close files until payment is effectively received or the debtor provides proof of payment.

Thus, if the debtor subsequently received communications and claims, it is due to an accidental error by the company, which has already been rectified by closing the file, and we inform you of this through the Case Closure Certificate. Furthermore, there is no other file in the debtor's name, so we have already taken the appropriate measures to ensure that no further claims are received."

FOURTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they can formulate any allegations they consider appropriate, indicating, in summary, that, despite the respondent stating that they received the amount owed on June 30, 2022, they have continued to receive messages requesting payment of the debt in December 2022, as well as in January, March, and May 2023, attaching copies of those messages.

FIFTH: After granting a hearing to the respondent, there is no record of any allegations having been submitted.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to

initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it.

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the performance of their functions. In the event that they have appointed a data protection officer, Article 39 of the GDPR assigns them the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent party for analysis, requiring them to respond to this Agency within one month and to demonstrate that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claimant party were satisfied. Consequently, on July 3, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

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In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons in case they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication directed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right to erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the data controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

- a) for exercising the right of freedom of expression and information;

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- b) for the fulfillment of a legal obligation requiring the processing of data imposed by Union Law or the laws of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the law referred to in paragraph 1 could make impossible or seriously hinder the achievement of the objectives of such processing, or

e) for the formulation, exercise, or defense of claims."

V

Conclusion

In the present case, from the examination of the documentation provided by the parties during the processing of this procedure, it has been established that the complainant requested the deletion of their data from the respondent, and although it is true that the latter states that it has proceeded to delete said data, the complainant has provided messages in which, many months later, they are still being asked for payment of the debt that has already been settled.

Furthermore, the respondent has replied to this Agency, but does not prove to have addressed the request made by the complainant, sending them the mandatory response to their request.

Thus, it cannot be accepted that the response to be given can be expressed merely as part of an administrative procedure, such as the submission of allegations in the present procedure, initiated precisely for not properly addressing the request in question.

The aforementioned rules do not allow for the request to be overlooked as if it had not been raised, leaving it without the response that must be issued by the controllers, even in cases where there are no data in the files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, to deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the controller to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that no copy of the necessary communication that must be directed to the complainant informing them about the decision made regarding the exercise of rights request is attached, it is appropriate to uphold the complaint that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 17 of the GDPR have been infringed and to urge MEDIUS COLLECTION, S.L. with NIF B87471348, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the causes for which the request cannot be attended, in accordance with the provisions set forth in this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to MEDIUS COLLECTION, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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